

Raghupal Singh Bhadauria v. Dakshinanchal Electricity

High Court of Judicature at Allahabad · Division Bench · 13 August 2019 · WRIT - C No. - 26496 of 2019 · **Writ disposed of; petitioner relegated to Clause 6.5 with time-bound consideration.**

HEADNOTE

A consumer who invoked writ jurisdiction to dispute an electricity bill was relegated to the alternative remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005, with a further route under the UPERC (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007. The High Court did not examine the bill on merits. An application under Clause 6.5 filed within ten days with a certified copy of the order is to be considered in accordance with law and disposed of within six weeks.

FACTUAL SUMMARY

Raghupal Singh Bhadauria petitioned the Allahabad High Court disputing an electricity bill of Dakshinanchal Electricity. On 9 August 2019 none appeared for him; the High Court Bar Association was abstaining from work and had requested that no adverse orders be passed, so the matter was adjourned. On 13 August 2019 both sides were heard. Counsel for the Power Corporation objected that the petitioner had an alternative remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and thereafter before the CGRF and Electricity Ombudsman under the 2007 Regulations.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — alternative remedy under clause 6.5

HOLDING

Where a consumer petitions in writ to dispute an electricity bill and the licensee objects that Clause 6.5 of the U.P. Electricity Supply Code, 2005 affords an alternative remedy, with a further remedy against the order passed thereunder under the UPERC (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007, the writ may be disposed of with liberty to apply under Clause 6.5. An application filed within ten days with a certified copy of the order shall be considered in accordance with law and disposed of within six weeks; the Court does not decide the correctness of the bill. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL

The writ was disposed of on the preliminary objection of alternative remedy under Clause 6.5 without examining the bill. ¶ 2